

**JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY
FOR AN ORDER EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD
(AUTHORITY: FAR 16.507-6)**

Business Operations Support (BOS) Task Order Extension
REQUIREMENTS-25-0107

1. Agency and contracting activity.

Department of Commerce (DOC), National Oceanic and Atmospheric Administration (NOAA) Acquisition and Grants Office (AGO), Satellite and Information Acquisition Division (SIAD) and NOAA National Environmental Satellite, Data, and Information Service (NESDIS).

2. Nature and/or description of the action being approved.

This is a justification for an exception to fair opportunity for a modification to an existing order. The modification will extend the Task Order 1332KP20FNEEA0030 for an additional 12 months. The task order was issued under the Professional, Scientific, and Technical Services Program (ProTech) Indefinite Delivery, Indefinite Quantity (IDIQ) Satellite domain, to Global Science and Technology, LLC. (GST). The period of performance for this extension will be twelve (12) months, beginning March 21, 2026 through March 20, 2027.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

The BOS Task Order delivers management, administrative, engineering, and technical services to six headquarters staff sections and four supporting offices across numerous programs and projects. Specialized services range from Strategic Planning and Policy Development to Project Management. Contractor support fills capability gaps to ensure continued operations at key entities like the NESDIS Assistant Chief Information Officer (ACIO), the Office of the Chief Financial Officer (CFO), Office of Common Services (OCS), and the Office of Satellite and Product Operations (OSPO). The BOS order sources critical skill sets not normally present in the federal workforce at NESDIS.

Within NOAA, the NESDIS is responsible for operating NOAA's satellite systems and delivering accurate, timely environmental data. These systems support essential services tied to national security, environmental monitoring, and economic development. To maintain highly accurate and consistent delivery of its data information products and services, NESDIS requires the continuation of professional expertise to support the NESDIS Senior Leadership team in Strategic Planning and Policy Development. This support ensures that organizational goals are effectively translated into actionable operational requirements during the transformation period.

The estimated total value for a 12-month extension is [REDACTED]

4. Authority and supporting rationale.

The contracting officer has determined the circumstances of the acquisition meet the following statutory exception:

Logical follow-on - FAR 16.507-6(b)(3) – In the interest of economy and efficiency, the modification to this order must be issued on a sole-source basis because it is a logical follow-on to order 1332KP20FNEEA0030 already issued under the contract and all awardees were given a fair opportunity to be considered for the original order. GST, located at 7855 Walker Drive Suite 200, Greenbelt, MD 20770, was awarded TO 1332KP20FNEEA0030 under the Protech Satellite Domain IDIQ contract ST133017CQ0050. The original Request for Proposal (RFP No. 1332KP20QNEEA0009) was released on May 1, 2020, as a small business set-aside. The solicitation closed on May 12, 2020. Eight offers were received and GST was ultimately selected through fair opportunity. The award was made in accordance with FAR 16.505(b)(1) using fair opportunity procedures. The resulting T&M order included a base year and four one-year options, along with an Option to Extend Services under FAR 52.217-8. The current period of performance ends on March 20, 2026.

TO 1332KP20FNEEA0030 provides critical service support to NESDIS headquarters and supported programs and is part of an effort supporting the realignment and transformation of the NESDIS headquarters. This BOS task order (1332KP20FNEEA0030) combines Human Capital and Business Operations capabilities and serves as the single headquarters level business support contract providing these services. NESDIS is actively working to competitively solicit the next iteration of these required services. The ongoing NESDIS Line Office-Wide transformation (reorganization) has introduced significant volatility into Business Operations Support (BOS) requirements by fundamentally restructuring how headquarters support is executed. Special circumstances necessitating this short extension include that the Government's defined requirement for these support services may change as the NESDIS headquarters realignment and transformation continues. Anticipated changes to the level of effort, including staff consolidations, for the future iteration of these requirements must be finalized to ensure an accurate solicitation for future competition. Continuing the existing services to support the NESDIS headquarters transformation and realignment is critical to maintaining continuity during this time.

Competing the next task order for these services before the Government is able to define its requirements in light of the transformation and realignment would be uneconomical and inefficient and would risk a catastrophic loss of continuity and institutional knowledge at a pivotal reorganization point. Onboarding a new vendor during this unstable phase would introduce unacceptable risk, as they would be forced to adapt to shifting requirements in real-time. An immediate extension of the

BOS task order is the only viable means to maintain mission continuity while a competitive contract is solicited and awarded.

The impact of a service gap would be an immediate failure to execute mission-critical transformation activities and a degraded capacity to deliver essential satellite data products, due to a total cessation of administrative and strategic manpower during this high-risk organizational transformation. The current NESDIS transition requires the immediate retention of our specialized contractor workforce to bridge critical technical gaps. These individuals possess deep institutional knowledge and niche engineering expertise—specifically in satellite data processing and mission-critical system maintenance—that are not currently redundant within the civil service staff. Because these unique skill sets are integrated into our daily operations, any disruption in support would result in an immediate loss of technical capability, creating unacceptable delays in data delivery and jeopardizing the integrity of the overall mission. Without an extension to BOS services, unacceptable delays in mission execution will occur, including delays caused by transitioning from one contractor to another. Any disruption to this support will impact NESDIS capability and may jeopardize the ability to deliver satellite data and other related products, damaging the government mission.

IAW FAR FAR 16.507-6(b)(3) issuance of a sole-source logical follow-on provides economy and efficiency gained through the following:

Economy: Economy is realized through avoiding duplication of costs associated with transition to a new contractor and conserving time and resources. Competing the support services requirement now would result in expending transition costs to a new contractor and, when the NESDIS headquarters transformation and realignment is complete, re-competing the services and expending transition costs again. Performance efficiency is gained by leveraging current resources rather than onboarding or training a new vendor to take over currently performed work for a short period of performance. In addition, a lapse in services or change in contractor during the NESDIS headquarters transformation would result in a disruption in NESDIS mission capability.

Efficiency: As the BOS order is aligned to support specific organizations within NESDIS, the upcoming transformation is anticipated to significantly affect the level of effort. Staff sections are expected to be combined or contracted, reducing requirements in some areas. The current contractor is already established in these areas and has undergone one reduction action already. Many GST contractors are cross trained in several areas. GST is uniquely positioned with the resident knowledge and experience to assist the NESDIS organization with the transformation. The contractor already has personnel supporting the transition planning and is aware of the upcoming changes. It would be inefficient to compete a new order in the short term based on the current level of effort only to later change the level of effort requiring an unpredictable amount of time to onboard, offboard, re-resource, and potentially retrain personnel under a new contractor. This extension

will allow the government to prepare to compete the requirement for future support service needs.

This extension is limited in both duration and value, and is intended to sustain continuity of operations while NESDIS finalizes its new organizational structure and prepares to compete the support services requirement going forward. The organizational transformation introduces requirement volatility with a risk that sufficient requirement clarity may not be achieved in time to compete a new action by the completion of the base period of this order. While requirements for the long-term competitive action are being finalized, maintaining the incumbent is a strategic necessity to ensure operational stability. GST has proven their pivot capability, resilience, financial and staffing agility, which are all critical for the rapid adaptability vital to performance success as the government's requirements continue to change. Introducing a new vendor at this juncture would create a period of high risk, as the mandatory lead times and critical transformation milestones, potentially disrupting the continuity of NESDIS program offices during their most vulnerable phase. Such delays would pose a high risk of critical failure for NESDIS business operations.

Justification for an Exception to Fair Opportunity (JEFO) Logical Follow-On Analysis

The scope of the contract for the initial order and the extension modification are the same type of work in terms of the task areas, deliverables, and performance requirements making it a logical follow on. The modification extends the period of performance by 12 months, the minimum time necessary to pursue a competitive award for future support services. The modification will be awarded from the same Indefinite Delivery Vehicle as the current contract and use the same rate structure. Therefore, this action satisfies the criteria for a logical follow-on FAR 16.507-6(b)(3). Extending this task order by 12 months: 1) is consistent with the anticipated size and complexity of the of the competitive procurement for these support services going forward, 2) takes into account the time needed to solicit, award, and transition to the successor task order, 3) takes into account changes in acquisition strategy and requirements due to the NESDIS headquarters transformation and realignment, and 4) is consistent with the length of each period of performance within the original order. Moreover, the anticipated dollar value of this extension is consistent with the dollar value associated with a 12-month period of performance under the original order.

Original Order was Competed

The original task order was issued on the basis of relevant competition requirements. GST was awarded TO 1332KP20FNEEA0030 under the Protech Satellite Domain IDIQ contract ST133017CQ0050. The original Request for Proposal (RFP No. 1332KP20QNEEA0009) was released on May 1, 2020, as a small business set-aside. The solicitation closed on May 12, 2020. Eight offers were received and GST was ultimately selected through fair opportunity. The award was made in accordance with FAR 16.505(b)(1) using fair opportunity

procedures.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The contracting officer determines that the anticipated prices will be fair and reasonable based on the Independent Government Cost Estimate (IGCE), comparison to established ProTech IDIQ labor rates, which may include discounts/price reductions in this modification, and analysis of actual costs incurred for similar services performed under the current and prior Task Orders.

6. Any other facts supporting the justification.

None.

7. Actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

To overcome the need for a sole-source award in the future, NOAA is actively pursuing a competitive procurement for this future requirement under the ProTech Satellite Domain IDIQ. ProTech is the vehicle of choice based on a successful track record of sourcing contractors to meet previous requirements. This extension will maintain continuity of critical services until a competitive award can be made. The acquisition planning for the competitive action is underway with an anticipated award by March 2027.

8. Technical/Requirements Representative Certification.

I certify this requirement constitutes the Government's minimum needs and the supporting data provided herein is accurate and complete to the best of my knowledge and belief.



9. Office of General Counsel Review.

Review



10. Approving Official Determination of Circumstance Applicability.

In accordance with FAR 16.507-6(d)(2)(x), the undersigned approving official for this justification hereby determines the circumstance cited above in section 4, Authority and supporting rationale, applies to this order.

Contracting Officer's Certification

I certify this justification is accurate and complete to the best of my knowledge and belief.



11. Approval for Justifications >\$900k. NOAA Competition Advocate:

Approve

